IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Appeal made under Section 331 of the Code of Criminal Procedure Act No.15 of 1979 read with Article 138 of the Constitution of the Democratic Socialist Republic of Sri Lanka.

Court of Appeal No:
CA/HCC/ 0049/2022

High Court of Monaragala
Case No. HC/ 311/2019

Konara Mudiyanselage Rambanda

ACCUSED-APPELLANT

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

BEFORE : **P. Kumararatnam, J.**
R. P. Hettiarachchi, J.

COUNSEL : **Rashmini Indatissa for the Appellant.**
Dishna Warnakula, DSG for the Respondent.

ARGUED ON : **12/12/2025**

DECIDED ON : **26/02/2026**

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JUDGMENT

P. Kumararatnam, J.

The above-named Accused-Appellant (hereinafter referred to as the Appellant) was indicted by the Attorney General for committing the offence as mentioned below.

On or about the 13th July 2018 in Siyabalanduwa the accused-Appellant committed the murder of Konara Mudiyanselage Chandrapala which is an offence punishable under Section 296 of the Penal Code.

As the Appellant opted for a non-jury trial, the trial commenced before a judge and the prosecution had led nine witnesses and marked productions P1- P24 and closed the case. As the evidence presented by the prosecution warranted a case to answer, the learned High Court Judge had called for the defence and explained the rights of the Appellant. Having selected the right to make a statement from the dock, the Appellant had proceeded to deny the charge by way of his dock statement. He had called his wife as a defence witness and closed his case.

After considering the evidence presented by both the prosecution and the defence, the Learned High Court Judge had convicted the Appellant as charged and sentenced him to death on 03/02/2022.

Being aggrieved by the aforesaid conviction and sentence, the Appellant preferred this appeal to this court.

The Learned Counsel for the Appellant informed this court that the Appellant has given consent to argue this matter in his absence. At the hearing the Appellant was connected via the Zoom platform from prison.

The following Grounds of Appeal were raised on behalf of the Appellant.

1. The prosecution has failed to prove the case beyond reasonable doubt.
2. The learned Trial Judge has not considered the principles of circumstantial evidence correctly.
3. The cumulative effect of the circumstantial evidence led by the prosecution does not rebut the presumption of innocence.

The background of the case *albeit* briefly is as follows:

According to PW1, Karunaratna, he was involved in cultivation and makes bricks for his living. The deceased, a relation of PW1, stayed in his house and helped PW1 in making bricks. The Appellant is his brother-in-law and was married to Padmawathi, the sister of PW1. Padmawathi was called as a defence witness by the Appellant.

PW1 went on to say that his sister Padmawathi had come to his house with her three children due to a family dispute she had with the Appellant. On the day of the incident, Padmawathie was also present at the house of PW1. PW3 is the wife of PW1. As usual, everyone had worked till 10.55pm in preparing bricks. PW3 and Padmawathie were in the kitchen preparing dinner for everybody. PW1, after taking a wash, when he was at home, had heard a report of a gun from the place where the deceased was having a

wash. As it was dark PW1 had taken his high-powered torch and had flashed it towards the place where the gun sound came from. At that time, he had seen the Appellant holding a gun and walking away from the scene, while looking at his house. With the aid of the torch light, he had identified the Appellant very correctly. PW1 had not seen the Appellant firing at the deceased, but had clearly seen the Appellant going away with a gun looking at his house. When the other inmates of the house came out after hearing the gun fire, PW1 had directed all the people to go into the house, and the deceased had died instantly. The gun had been recovered from the Appellant upon his statement, but PW1 could not identify the gun.

PW3, Chandani, wife of PW1 also corroborated the evidence given by PW1. Hearing the gun fire, when she came out of the house, she had seen the Appellant walking about 60-70 feet away carrying an object similar to a long stick-like thing. She had identified the Appellant with the aid of a torch light flashed by her husband. Immediately, her husband PW1 had pushed everybody into the house and closed the door.

Officers from the Govindupura Police Station had conducted investigations, arrested the accused on the following day and recovered a gun based on his statement under Section 27(1) of the Evidence Ordinance.

As the appeal grounds raised by the Appellants are interconnected, all grounds will be considered together hereinafter.

The learned Counsel for the Appellant strenuously argued that the learned High Court Judge had not adequately dealt with circumstantial evidence in her judgement.

Circumstantial evidence is a form of indirectly proving that a fact is true by way of proving other related facts, and would thereby require logical interference to reach a conclusion. This is distinct from direct evidence (eg; an eyewitness) which would prove a fact outright. Fingerprints at a crime scene, any possible motive or opportunity are some examples of

circumstantial evidence, where a case could be built by bringing together a chain of circumstances. Such evidence would be used where direct proof is not available. However, it is important to note that the jury must be convinced beyond a reasonable doubt that the guilt of the accused is the only reasonable conclusion, considering such evidence.

In **King v. Appuhamy** 46 NLR 128 the court held that:

> *"In order to justify the inference of guilt from purely circumstantial evidence, the inculpatory facts must be incompatible with the innocence of the accused and incapable of explanation upon any other reasonable hypothesis than that of his guilt."*

In **Podisingho v. King** 53 NLR 49 the court held that:

> *"in a case of circumstantial evidence, it is the duty of the trial Judge to tell the Jury that such evidence must be totally inconsistent with the innocence of the accused and must only be consistent with his guilt."*

In **Don Sunny Vs Attorney General** [1998] 2 Sri.L.R. 1 it was held that:

> *"When a charge is sought to be proved by circumstantial evidence the proved items of circumstantial evidence when taken together must irresistibly point towards the only inference that the accused committed the offence. On a consideration of all the evidence the only inference that can be arrived at should be consistent with the guilt of the accused only".*

In the case of **Nandasena v The Republic of Sri Lanka** (1994) 3 SLR 175 it was held:

> "*In a case which turns on circumstantial evidence it is essential that the trial judge should explain clearly to the jury that circumstantial evidence, if it is to support a conviction, must be altogether inconsistent with the accused's innocence and explicable solely on the hypothesis of his guilt.*
>
> *It is a sufficient direction where the trial judge directed the jury that they should find the accused guilty of the charge of murder only if they were satisfied beyond reasonable doubt that the fatal injuries were caused by the accused having regard to the circumstantial evidence in the case. The jury had been sufficiently directed where they were told that the circumstantial evidence should unmistakenly point to the conclusion that the accused and no other, inflicted the fatal stab injuries.*"

In this case the learned High Court Judge was very much mindful about the circumstantial evidence. At pages 475-477 she had extensively considered the circumstances under which she had come to her conclusion.
The Learned High Court Judge in her judgment at pages 461-477 of the brief very extensively analysed the evidence of the witnesses and had come to correct finding. She had given plausible reasons as to why she believes the evidence of PW1 and PW3 who had seen the Appellant leaving the scene of the crime immediately after the report of the gun. PW1 had seen a gun being carried by the Appellant while PW3 had seen the Appellant carrying an object like a long stick.

Following the arrest of the Appellant in this case, a gun was recovered based on his statement to the police. Although PW1 had stated that he saw the Appellant carrying a gun when he walked away from his land, he could not confirm the same when the gun was shown to him.

The incident happened on 13/07/2018 and PW1 gave evidence regarding the gun on 18/03/2021, about 03 years after the incident. As the memory of a person fades with the lapse of time, recalling each and every minute detail of a gruesome incident which happened suddenly and unexpectedly is humanely impossible.

Although, PW1 had failed to identify the gun shown to him, the evidence given by the JMO and the Government Analyst correctly concluded that the death was caused due to firearm injuries.

Evidence of the Government Analyst confirms that waddings of gun linked with what the police had recovered from the hut where the Appellant was living, which further strengthen the circumstantial evidence in the prosecution case.

In the case of **Bhoginbhai Hirjibhai v. State of Gujarat** [1983] AIR SC 753 the court held that:

> *"Ordinarily, it so happens that a witness is overtaken by events. The witness could not have anticipated the occurrence which so often has an element of surprise. The mental faculties therefore cannot be expected to be attuned to absorb the details.*

In the case of **State of U.P. v. M.K. Anthony** AIR 1985 SC 48 it was held:

> "*Even honest and truthful witnesses may differ in some details unrelated to the main incident because power of observation, retention and reproduction differ with individuals."*

In the case of **Leela Ram v. State of Haryana** (1999) 9 SCC 525 it was held:

> "*…the discrepancies found in the ocular account of two witnesses unless they are so vital, cannot affect the credibility of the evidence of the witnesses. There is bound to be some discrepancies between the narrations of different witnesses when they speak on details, and unless the contradictions are of a material dimension, the same should*

> *not be used to jettison the evidence in its entirety. Incidentally, corroboration of evidence with mathematical niceties cannot be expected in criminal cases. Minor embellishment, there may be, but variations by reason therefor should not render the evidence of eye witnesses unbelievable. Trivial discrepancies ought not to obliterate otherwise acceptable evidence."*

Therefore, it is incorrect to say that the prosecution had failed to prove the recovery evidence under Section 27(1) of Evidence Ordinance. PW7 who had recovered the gun upon the statement of the Appellant correctly identified the gun at the trial. In the absence of the information provided by the Appellant, according to PW7, the gun could not have been recovered.

The identification and physical production of the actual murder weapon is not a legal requirement in order to convict in a criminal trial. The defendant's guilt must be proved beyond a reasonable doubt by the prosecution, with any available evidence. Such evidence can be a combination of direct and circumstantial evidence. While appreciating that the presence of a murder weapon is indeed powerful physical evidence, it is important to note that the absence of such does not automatically result in the charges being dismissed. In such circumstances, prosecutors would usually rely on other forms of evidence in order to build their case.

Next, the learned Counsel for the Appellant contended that the identification of the Appellant is doubtful under the circumstances in which PW1 and PW3 had identified the Appellant. It is the contention of PW1 that he had taken his torch immediately after he heard the gun sound. As he does cultivation, he is used to having a torch with him. According to PW3, the torch that they had with them was a high powered one as in certain instances they encounter elephant invasion. Therefore, the prosecution had placed plausible evidence that the torch carried by PW1 was a powerful one. Hence, the light condition was not disputed in this case.

Most of the time, the proper identification of an accused person is the most fundamental and important issue that needs to be determined in a criminal trial. In this case it is very important to discuss whether the prosecution has established the identity of the Appellant beyond reasonable doubt.

Phipson, in his book titled Phipson on Evidence (Sweet & Maxwell Thomson Reuters,17th Edn.2015) states that:

> *"it is often important to establish the identity of a person who a witness testifies that he saw on a relevant occasion. Sometimes, the witness will testify that he had seen the person before, or even know the person well, and therefore recognised the person observed on the relevant occasion".*

Many crimes are committed under poor light conditions when no-one is able to identify the accused person properly. In such circumstances, the case will entirely rest on the proper identification of the accused person. If the identification is compromised, the net result would be the acquittal of the accused person from the case. Hence, identification evidence should be considered very seriously due to its delicate nature.

In **Alexander v. R** (1981) 145 CLR 395 at 426, Mason,J stated that:

> "*Identification is notoriously uncertain. It depends upon so many variables. They include the difficulty one has in recognising on a subsequent occasion a person observed, perhaps fleetingly, on a former occasion; the extent of the opportunity for observation on a variety of circumstances; the vagaries of human perception and recollection; and the tendency of the mind to respond to suggestions, notably the tendency to substitute a photographic image once seen for a hazy recollection of the person initially observed".*

In **Visveswaran v State** (2003) 6 SCC 73 the court held that:

> *"Before we notice the circumstances proving the case against the appellant and establishing his identity beyond reasonable doubt, it has to be borne in mind that the approach required to be adopted by courts in such cases*

has to be different. The cases are required to be dealt with utmost sensitivity. (…..) Further, the evidence is required to be appreciated having regard to the background of the entire case and not in isolation".

In **Turnbull** [1977] QB 224 the Court of Appeal laid down the following guidelines for judges in trials that involve disputed identification evidence.

"Where the case against an accused depends wholly or substantially on the correctness of one or more identifications of the accused, which the defence alleges to be mistaken, the judge should warn the jury of the special need for caution before convicting the accused in reliance on the correctness of the identification(s)".

The judge should tell the jury that:

(i) caution is required to avoid the risk of injustice;
(ii) a witness who is honest may be wrong even if they are convinced, they are right;
(iii) a witness who is convincing may still be wrong;
(iv) more than one witness may be wrong;
(v) a witness who recognises the defendant, even when the witness knows the defendant very well, may be wrong.

"The Judge should direct the jury to examine closely the circumstances in which the identification by each witness came to be made".

Some of these circumstances may include:

(i) the length of time the accused was observed by the witness;
(ii) the distance the witness was from the accused;
(iii) the state of the light;
(iv) the length of time elapsed between the original observation and the subsequent identification to the police.

Guided by the above-mentioned judgments and writings now I consider whether the identity of the Appellant was established beyond reasonable doubt by the prosecution in this case.

In this case, the Appellant is not a stranger to PW1 and PW3. The Appellant is a close relative of the witnesses PW1 and PW3. Further, the torch used by PW1 was a high powered one and the light condition was not disputed in this case. Additionally, both PW1 and PW3 had described the dress of the Appellant. Hence, I conclude that the identification of the Appellant has been established beyond a reasonable doubt.

Further, the Learned High Court Judge had very correctly disregarded the contradictions marked on the evidence given by PW1 and PW3, stating that the said contradictions are not material enough to create a doubt about the core of the prosecution case.

In the case of **The Attorney General v. Sandanam Pitchi Mary Theresa** (2011) 2 Sri L.R. 292 held that,

> *"Witnesses should not be disbelieved on account of trifling discrepancies and omissions. When contradictions are marked, the Judge should direct his attention to whether they are material or not and the witness should be given an opportunity of explaining that matter."*

In this case the Appellant made a very short dock statement and submitted that the deceased had lots of enemies as he had a cannabis cultivation. He denied the charge. A mere denial and mere surmise would not be sufficient in the circumstances of this case.

Additionally, the Appellant had called his wife, who is the sister of PW1 to give evidence on his behalf. In her evidence she did not disclose any of the matters stated by the Appellant in his dock statement. She further said, that the Appellant was very suspicious about her when she goes for work with men. Due to this suspicious attitude, he had suspected that she was having an affair with the deceased, who was an unmarried man at the time of his

demise. Further she admitted that the deceased used to provide her with certain amenities and had also come to see her.

Although the prosecution is not required to elicit motive of the crime, if the evidence transpires motive, it certainly strengthens the prosecution case.

In this case, the learned High Court had the exclusive opportunity of observing the demeanour and deportment of all the witnesses, including the defence witness Padmawathi.

In this case, the learned High Court Judge had very extensively considered both the prosecution and the defence witnesses and properly evaluated the evidence given by them. I agree with her conclusion that the evidence given by PW1 and PW3 is not tainted with uncertainty or ambiguity and that it certainly passes the tests of probability, consistency and spontaneity.

In the case of **Wickremasuriya v. Dedoleena and others** 1996 [2] SLR 95 Jayasuriya J held that;

> *"A judge, in applying the Test of Probability and Improbability relies heavily on his knowledge of men and matters and the patterns of conduct observed by human beings both ingenious as well as those who are less talented and fortunate"*

In the case of ***Singharam Thiyagarajah v. Attorney General*** *C.A. 216/2010 (H.C. Colombo B 1645/2006),* in the judgment dated 10 October 2014, it was noted that:

> "*I wish to observe that the realities of life and the testimony of a witness cannot always be co-related. Nothing is perfect in life and the truth does not surface so easily as a man so bias could attempt to hide the truth or distort it. The test of probability needs to be applied and recognized to grapple with normal human behaviour and problems and pave the way for likelihood of occurrence.*"

When the evidence presented against the Appellant is considered, I conclude that the prosecution had succeeded in adducing highly incriminating evidence against the Appellant and thereby has established the charge beyond reasonable doubt.

As such, I conclude, that this is not an appropriate case in which to interfere with the findings of the Learned High Court Judge of Monaragala dated 03/02/2022. Hence, I dismiss the Appeal.

The Registrar is directed to send this judgment to the High Court of Monaragala along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree

JUDGE OF THE COURT OF APPEAL